The examination is being carried out on the **following application documents**

Description, Pages

1-17 as published

Claims, Numbers

1-15 filed in electronic form on 15-11-2024

Drawings, Sheets

1/10-10/10 as published

1 Reference is made to the following documents; the numbering will be adhered to in the rest of the procedure.

D1 US 2020/377635 A1 (OSSIPOV ALEXEI V [US] ET AL) 3 December 2020 (2020-12-03)

D2 US 2016/067035 A1 (GONTIJO IVAIR [US] ET AL) 10 March 2016 (2016-03-10)

D3 US 2008/288065 A1 (ZHAO HUAWEI [US] ET AL) 20 November 2008 (2008-11-20)

2 Claim 1 has not been amended, the amendments in the dependent claims appear to fulfil the requirements of Article 123(2) EPC.

3 For the reasons outlined below, the following claims are considered unclear:

3.1 Claim 1 relies on the parameter *'linear swell index'*, a metric unknown in the intra-ocular lens field. According to the Guidelines (F-IV, 4.11) the use of an unusual parameter is only permissible where the claim itself or the description

unambiguously teaches a measurement protocol enabling the skilled person to determine whether a given product falls within the claim. In its absence, the claim lacks clarity under Art 84 EPC.

In the intra-ocular lens (IOL) field, there is no ISO or ASTM standard that specifies a procedure for determining a linear swell index. One-dimensional swelling tests are standardised in other sectors, eg. expansive clays, bentonite liners, rubber parts, but each of those tests are narrowly tailored to its own material class and test fluid. As a result, there is no single, universally accepted method that can simply be transplanted into ophthalmic-polymer testing, and the parameter remains unstandardised and unusual for IOL applications.

Because the metric is unusual for intra-ocular lenses, any application relying on it must spell out (i) sample geometry, (ii) exact test medium, (iii) temperature/ time to equilibrium, and (iv) whether the index is a ratio or a percentage; otherwise the skilled person cannot reproduce or verify the 5 % criterion.

This is not disclosed in the present application.

Hence, the subject-matte of claim 1 is unclear (Articles 84 EPC).

3.2 The subject-matter of claim 2 is not clear for the same reasons as for claim 1 (Article 54 EPC).

3.3 According to claim 6, the transparent optic material and the peripheral portion material comprise the same constituent components but for one or more visible light absorbing components being present in the peripheral portion material.

It is not clear what is meant by "constituent components", is it a chemical identity only or an an identical qualitative and quantitative make-up? The exact chemical composition of the optic material and the peripheral portion material should have been included in the claim. Hence, claim 6 is unclear (Article 84 EPC).

3.4 The same objection as for claim 6 applies for claim 7 (Article 84 EPC).

3.5 The subject-matter of claim 8 is unclear since it is patient specific. It is not clear which sizes the optic and the peripheral portion should have (Article 84 EPC).

3.6 Claims 11 to 13 do not meet the requirements of Article 84 EPC in that the matter for which protection is sought is not defined. The claims attempt to define the subject-matter in terms of the result to be achieved.

4 Independent claim 1

Document D1 (paragraphs [0089]-[0099] and figure 13a) discloses all the features of claim 1, i.e. an ophthalmic implant (100) , comprising: a transparent optic portion (102) having a diameter that is tunable; and a peripheral non-optic portion (104) coupled to the optic portion and extending peripherally therefrom, the peripheral portion sized and configured to engage a sulcus of an eye, the transparent optic portion made of a transparent optic material adapted to allow visible light to pass there through (optic portion 102 for pass through of light), and the peripheral non-optic portion made of a light absorbing material adapted to absorb visible light (peripheral support potion 104 with anti-reflective layer to absorb more light than the optic portion).

Although the next feature is unclear (see above) since according to this document both optic and peripheral portion can be made of the same material, the feature *"and wherein the transparent material and the visible light absorbing material have linear swell indices that are within 5% of each other when exposed to one or both of aqueous humour or balanced salt solution ('BSS')"* is also disclosed in this document.

Hence, the subject-matter of claim 1 is not new, contrary to the requirements of Articles 52(1) and 54(1),(2) EPC.

5 Dependent claims 2 to 15

Claim 2: Since according to this document both optic and peripheral portion can be made of the same material, this claim is also not novel over D1.

Claim 3: D1 ([0024], [0113]-[0119]) discloses that both portion can be made of different materials.

Claims 4 and 5: Also known from D1 (see figure 13A and paragraph [0099]).

Claims 6, 7 and 8: These claims are unclear (see above).

Claims 9, 10, 14, 15: The subject-matter of these claims relate to slight constructional changes in the IOL of claim 1 which come within the scope of the customary practice followed by persons skilled in the art, especially as the advantages thus achieved can be readily contemplated in advance (Article 56 EPC)

Claims 11-13: These claims are unclear (see above).

6 The following points are moreover to be noted:

6.1 Contrary to the requirements of Rule 43(1) EPC, claim 1 is not cast in the two-part form.

6.2 To meet the requirements of Rule 42(1)(b) EPC, document D1 should have been identified in the description, and the relevant background art disclosed therein should have been discussed.

6.3 The features of the claims should have been provided with reference signs placed in parentheses to increase the intelligibility of the claims (Rule 43(7) EPC). This applies to both the preamble and characterising portion (see the Guidelines, C-III, 4.11).

7 It is not at present apparent which part of the application could serve as a basis for a new, allowable claim. Should the applicant nevertheless regard some particular matter as patentable, an independent claim should be filed taking account of Rule 43(1) EPC. The applicant should also indicate in the letter of reply the difference of the subject-matter of the new claim vis-à-vis the state of the art and the significance thereof.

The attention of the applicant is drawn to the fact that the application may not be amended in such a way that it contains subject-matter which extends beyond the content of the application as filed (Article 123(2) EPC).

In order to facilitate the examination of the conformity of the amended application with the requirements of Article 123(2) EPC, the applicant is requested to clearly identify the amendments carried out, irrespective of whether they concern amendments by addition, replacement or deletion, and to indicate the passages of the application as filed on which these amendments are based.